

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,
v.
CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S BENCH BRIEF EXHIBIT
PACKET**
(CCP § 1005; CRC 3.1110)

Dept.: 302
Date: June 24, 2026

1 COURTESY COPY COVER SHEET AND READING GUIDE (TAB 27)

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph M. Quinn **Hearing:** June 24, 2026, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

1.1 PAGE 1: COURTESY COPY COVER SHEET (TAB 27)

**COURTESY COPY COVER SHEET FOR PLAINTIFF'S BENCH BRIEF EXHIBIT PACKET
TAB 27**

1.1.1 Verbatim May 13, 2026 minute order (Dept. 302)

"CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE."

1.1.2 Designation

The attached document was filed May 12, 2026 under Transaction ID 79456062.

It is operative for the consolidated June 24, 2026 hearing per Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions (TX 79429280, filed May 8, 2026), Plaintiff's Notice of Hearing Date Re-Designation and Compliance with SF Local Rule 2.7B (filed May 21, 2026), and Plaintiff's Notice Acknowledging Court-Ordered Consolidation (filed May 21, 2026). No caption is altered. The attached document is presented as filed, as a chambers courtesy copy under SF Local Rule 2.7B and the May 13, 2026 minute order.

1.1.3 Non-pleading notice

THIS COVER SHEET IS A NON-PLEADING CHAMBERS ROUTING AID. IT REOPENS NO BRIEFING AND INTRODUCES NO NEW AUTHORITY.

1.1.4 Signature

Dated: May 21, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Rohnert Park, CA 94928
650.488.7510 E: soltrinox@gmail.com

1.2 PAGE 2: READING GUIDE (TAB 27)

What this document is: Companion authorities packet for TAB 26.

Contains: Per-authority Court Citation Validation Report.

Ties to: TAB 26.

1.2.1 Reading guide footer

READING GUIDE IS A NON-PLEADING BENCH AID. IT INTRODUCES NO NEW AUTHORITY AND REOPENS NO BRIEFING. THE UNDERLYING DOCUMENT FOLLOWS THIS PAGE AS FILED.

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES 1 through 50, inclusive,
Defendant.

Case No. CGC-25-631802

PLAINTIFF'S EXHIBIT PACKET IN SUPPORT OF BENCH BRIEF RE
GATEWAY SEQUENCING AND INLAND OVERSIGHT

Date: May 12, 2026

Hearing: May 13, 2026, 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Plaintiff Franciscus Dylan Rosario, self-represented, submits the following exhibits in support of the concurrently filed Plaintiff's Bench Brief (CGC-25-631802).

EXHIBIT INDEX

Exh.	Description	Pages
1	CSAA February 25, 2021 denial letter	2
2	FAC excerpt (cause-of-action paragraphs)	6
3	Insurance Code section 790.03(h) (verbatim)	3
4	10 CCR sections 2695.3-2695.8 (verbatim block)	4
5	911 audio / lodging notice (excerpt)	3
6	CSAA claim file (investigation exhibit)	1
7	Public availability (complaint paragraphs; Gov. Code; Penal Code 832.7)	2
8	Defense Anti-SLAPP MPA (excerpt; no section 425.17 engagement)	10
9	O'Connell reply declaration and fee prayer (companion 801 reply)	4

Separator sheets: 9. Exhibit pages: 35. Total: 45.

Dated: May 12, 2026

/s/ Franciscus Dylan Rosario
Plaintiff, Self-represented

EXHIBIT 1

CSAA February 25, 2021 denial letter

Source: CLERKS-TRANSCRIPTS-SOURCES/AAA ins. info.pdf pp. 1-2

CGC-25-631802

May 13, 2026, 9:00 a.m., Dept. 302



P.O. Box 24523
Oakland, CA 94623-1523
Phone 800.922.8228
Fax 877.548.1610



000101 7117606 000 01 001

FRANCISCUS ROSARIO
835 TERRY A FRANCOIS BLVD
SAN FRANCISCO, CA 94158-2209



February 25, 2021

Re: Insured: Subhi Abdelhalim
Claim No.: 1004-09-1054
Date of Loss: February 04, 2021

Dear Franciscus Rosario:

We have concluded our investigation of your claim.

Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim. In addition, we dispute your right to recover the amount of damages you have claimed.

Our decision is based on the facts currently available. If you have any additional information which you believe is relevant to your claim, please submit that information to us for our consideration.

If you believe this claim has been wrongfully denied or rejected in whole or in part, you may have the matter reviewed by the Claims Services Bureau of the California Department of Insurance, 300 South Spring Street, Los Angeles, California 90013; Telephone: 800.927.4357 or 213.897.8921.

According to California law, you have two (2) years from the date of an incident to file a lawsuit for damages as a result of personal injury. If you sustained personal injuries as a result of the incident, you must settle your claim or file a lawsuit against those responsible for your personal injuries within two years from the date of the incident. Should you fail to do so, we will be entitled to deny your personal injury claim on that basis.

According to California law, you have three (3) years from the date of an incident to file a lawsuit for damages as a result of damage to your property. If you sustained damage to your property as a result of the incident, you must settle your claim or file a lawsuit against those responsible for the damage to your property within three years from the date of the incident. Should you fail to do so, we will be entitled to deny your property damage claim on that basis.

Should you have any questions, please do not hesitate to contact me.

Sincerely,

Sarah Rash

Sarah Rash
Claims Representative
Phone: 856-209-7086





Account No. **04767X**

CSAA-CA
Sendout 60

XM

Attention : **Tonya McConnaughay**

CSAA INSURANCE GROUP,AAA INSUR

Customer Service:

Metro Reporting Customer Support 1-800-245-6686 or help@metroreporting.com

Metropolitan Reporting Bureau
BOX 926, William Penn Annex
Philadelphia, PA 19105-0926
FAX (800) 343-9047

Type of Report: AUTO ACCIDENT

INSURED : SUBHI A ABDELHALIM
CLAIM NUMBER: 1004-09-1054
POLICY NUM. : CAAS100310857
DATE OF LOSS: 02/04/21
LOSS STREET : 5th St & Tehama St
LOSS CITY : San Francisco CA
POLICE DEPT.: NEED SIGN AUTH WITH REQ
REPORT NUM. : 210079556
INS. DRIVER : ABDELHALIM SUBHI A
OTHER DRIVER:
PCT./DIST. : SAN FRANCI
DESC.OF OTHER: v1 turning right po

THANK YOU FOR THE ORDER!

Any questions or problems please feel free to contact us.

PH. (800) 245-6686 or Help@metroreporting.com



1131096098



EXHIBIT 2

FAC excerpt (cause-of-action paragraphs)

Source: 03-CASE-CGC-25-631802/01-First-Amended-Complaint.pdf pp. 12-17

CGC-25-631802

May 13, 2026, 9:00 a.m., Dept. 302

1 **CAUSES OF ACTION**

2 **FIRST CAUSE OF ACTION**

3 **FRAUD AND DECEIT (CIV. CODE §§ 1709-1710)**

4 **(AGAINST CSAA AND DOES 1-25)**

5 44. Plaintiff realleges and incorporates by reference paragraphs 1 through 43 as though fully set
6 forth herein.

7 45. On February 25, 2021, CSAA, through a claims representative whose identity is presently
8 unknown to Plaintiff and is therefore sued as Doe 1, mailed Plaintiff the Denial Letter stating
9 that CSAA had “concluded” its investigation and “concluded” that its insured was not liable, **as a**
10 **business claim decision and denial communication issued in the ordinary course of CSAA’s**
11 **claim-handling practices.**

12 46. Plaintiff alleges this statement was a representation of an existing or past fact—**investigative**
13 **finality**—namely that CSAA had already completed its investigation as of the Denial Letter date
14 and that its liability conclusion was based on that completed investigation.

15 47. Plaintiff alleges the representation was false when made because CSAA had not obtained
16 and reviewed **basic, readily obtainable, foundational objective liability evidence**—including
17 the 911 audio, body-worn camera footage, and computer aided dispatch records—as of February
18 25, 2021. Plaintiff further alleges that these categories of foundational objective evidence were
19 generated contemporaneously with the February 4, 2021 incident and were identifiable and obtain-
20 able during the period CSAA claimed its investigation had “concluded,” as alleged in paragraphs
21 19 through 21.

22 48. Plaintiff alleges CSAA knew the representation was false when made, or made it recklessly
23 without reasonable grounds for believing it to be true, **because a reasonable insurer would know**
24 **that a liability investigation cannot be truthfully described as “concluded” without obtaining**
25 **and reviewing the foundational objective incident records identified above (or, at minimum,**
26 **without knowing whether such records exist and what they show).** Plaintiff further alleges
27 CSAA made the representation **as institutional leverage**—with intent to induce Plaintiff to aban-

1 don, curtail, or discount pursuit of his claim—by falsely presenting investigative finality, shifting
2 basic evidence-procurement burdens onto Plaintiff, and increasing delay and pressure consistent
3 with deny–delay–defend claim suppression.

4 **48A.** Plaintiff alleges CSAA’s conduct was not a mere negligent miscommunication. It was an
5 affirmative business representation of investigative finality used to obtain leverage over an injured
6 claimant. Plaintiff alleges that falsely declaring an investigation “concluded” while omitting basic
7 foundational record collection constitutes despicable conduct in willful disregard of the rights of
8 others because its natural and probable consequence is to increase the claimant’s burdens, delay,
9 and coercive pressure to give up.

10 **48B.** Upon information and belief, Plaintiff alleges CSAA’s denial-letter wording and claim-handling
11 approach reflect institutional practices, training, supervision, and performance incentives that au-
12 thorize, encourage, or tolerate categorical denial communications representing investigative final-
13 ity when foundational objective evidence has not been obtained or reviewed, including claim-
14 closure targets, supervisor review practices for liability denials, and standardized denial letter tem-
15 plates.

16 **48C.** Upon information and belief, Plaintiff alleges CSAA’s officers, directors, or managing agents
17 authorized, ratified, or were aware of and consciously disregarded these practices, thereby support-
18 ing punitive damages under Civil Code section 3294 to the extent proven.

19 49. Plaintiff alleges he justifiably relied on CSAA’s representation and that his reliance was a
20 substantial factor in causing the economic losses pleaded herein.

21 50. As a direct and proximate result of CSAA’s fraud and deceit, Plaintiff alleges he incurred and
22 continues to incur damages including:

23 (a) Out-of-pocket procurement and investigation expenses incurred to obtain foundational objec-
24 tive evidence that CSAA represented had already been investigated, including fees paid to obtain
25 public records and related materials, copying/certification/retrieval fees, and transcription and re-
26 view expenses;

27 (b) Attorney fees and litigation costs incurred in the related third-party litigation that Plaintiff
28 alleges were proximately caused by CSAA’s misrepresentation and are recoverable as damages

1 under *Prentice*, subject to proof and segregation as alleged; and

2 (c) Lost earnings, diminished earning capacity, and lost productive time attributable to the in-
3 cremental procurement, review, authentication, and litigation-support burdens created by CSAA's
4 misrepresentation, segregated from attorney-fee damages and to be proven with competent, non-
5 speculative evidence, **including incremental time burdens caused by CSAA's burden-shifting**
6 **and delay leverage inherent in falsely representing investigative finality.**

7 (d) Additional medical, therapeutic, and health-related expenses proximately caused by the fraud-
8 induced delay and burdens described herein, including expenses incurred to address incremental
9 physical exacerbation and stress-related conditions;

10 (e) Incremental non-economic harm proximately caused by the fraud-induced delay and burdens,
11 including physical exacerbation, increased pain and suffering, emotional distress, humiliation, loss
12 of enjoyment of life, and impairment of ordinary functioning, all pleaded as "fraud-delta" damages
13 that are distinct from the underlying collision damages; and

14 (f) Future economic and non-economic damages proximately caused by CSAA's fraud, according
15 to proof.

16 51. Plaintiff alleges that CSAA's conduct was willful, oppressive, and fraudulent within the mean-
17 ing of Civil Code section 3294 in that CSAA stated its investigation was "concluded" and issued
18 a categorical liability denial without having obtained and reviewed foundational objective liability
19 evidence, and did so in a manner intended to convey investigative finality and to discourage or
20 defeat valid claims.

21 52. Plaintiff alleges that CSAA knew, or acted in conscious disregard of the high probability, that an
22 injured claimant faced with a categorical denial and false investigative finality would foreseeably
23 suffer substantial harm, including the shifting of evidence burdens, protracted delay, and physical
24 and psychological toll, and that CSAA's conduct was despicable in light of Plaintiff's physical
25 vulnerability and the foreseeable consequences of delay and forced proof burdens.

26 53. Plaintiff is informed and believes, and based thereon alleges, that CSAA's denial-letter lan-
27 guage and claims-handling conduct described herein was authorized, ratified, or approved by one
28 or more officers, directors, or managing agents of CSAA, or was implemented pursuant to corpo-

1 rate training, policies, metrics, or supervisory practices designed to use categorical denial commu-
2 nications to obtain claims leverage and delay, and that such authorization or ratification supports
3 an award of punitive damages against CSAA.

4 54. Plaintiff seeks compensatory damages according to proof at trial, including economic and
5 non-economic fraud-delta damages as alleged herein, and seeks punitive damages in an amount
6 sufficient to punish and deter, to the extent permitted by law.

7 **SECOND CAUSE OF ACTION**

8 **VIOLATION OF BUSINESS & PROFESSIONS CODE § 17200 (UCL)** 9 **(AGAINST CSAA AND DOES 26-50)**

10 55. Plaintiff realleges and incorporates by reference paragraphs 1 through 54 as though fully set
11 forth herein.

12 56. CSAA engaged in unlawful, unfair, and fraudulent business acts and practices within the
13 meaning of Business and Professions Code section 17200, including issuing the Denial Letter
14 as alleged above, **as part of a claim-handling practice that uses categorical “investigation**
15 **concluded” denial communications to create leverage through burden-shifting and delay.**

16 57. Unlawful: Plaintiff alleges CSAA’s conduct constitutes common-law fraud and deceit in vio-
17 lation of Civil Code sections 1709 and 1710.

18 58. Fraudulent: Plaintiff alleges CSAA’s denial-letter practice is likely to deceive because a reason-
19 able consumer would understand a statement that an investigation is “concluded” to mean the in-
20 surer has obtained and reviewed foundational objective liability evidence **or otherwise completed**
21 **the basic investigative steps necessary to truthfully represent investigative finality** before is-
22 suing a categorical liability denial, particularly where such evidence is generated at the time of the
23 incident through 911 and police response channels and is ordinarily obtainable during a routine
24 claim investigation.

25 59. Unfair: Plaintiff alleges CSAA’s practice of issuing categorical denials that state an inves-
26 tigation is “concluded” when foundational objective liability evidence has not been obtained or
27 reviewed causes substantial injury by shifting the cost of basic evidence collection and authentica-

tion burdens onto the injured claimant, **creating delay and coercive pressure consistent with a deny–delay–defend pattern that induces abandonment or undervalued resolution.**

60. Plaintiff has standing to pursue this claim because he has lost money or property as a result of CSAA’s unfair competition, including out-of-pocket procurement and investigation costs.

61. Plaintiff seeks:

- restitution of the out-of-pocket procurement and investigation costs according to proof; and
- injunctive relief enjoining CSAA from issuing denial letters stating an investigation is “concluded” **unless and until** CSAA has obtained and reviewed foundational objective liability evidence reasonably necessary to support such a representation, including where applicable 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses that such records were not obtained and reviewed before stating any liability conclusion;**

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment as follows:

1. For restitution pursuant to Business and Professions Code section 17200, in an amount according to proof;
2. For injunctive relief enjoining CSAA from issuing denial letters stating an investigation is “concluded” **unless and until** CSAA has obtained and reviewed foundational objective liability evidence reasonably necessary to support such a representation, including where applicable 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses that such records were not obtained and reviewed before stating any liability conclusion;**
3. For compensatory damages for economic and non-economic losses caused by fraud and deceit according to proof, including out-of-pocket procurement and investigation expenses, additional medical/therapeutic expenses, and fraud-delta physical and emotional harm as alleged;
4. For attorney fees and litigation costs as damages to the extent permitted under Prentice and proven with segregation and reasonableness as alleged;
5. For punitive damages to the extent permitted by law;
6. For costs of suit;

1 7. For prejudgment interest as permitted by law; and

2 8. For such other and further relief as the Court deems just and proper.

3 **DEMAND FOR JURY TRIAL**

4 62. Plaintiff hereby demands a trial by jury on all causes of action so triable.

5 Plaintiff will contemporaneously file or has filed a Supplemental Memorandum Statement in Sup-
6 port of Plaintiff addressing the legal and factual foundation for the denial-letter fraud theory and
7 the “concluded investigation” misrepresentation alleged herein, together with a Memorandum of
8 Points and Authorities regarding the denial-letter fraud theory, Prentice damages, and UCL injunc-
9 tive relief.

10 DATED: February 23, 2026

11 

12 Franciscus Dylan Rosario
13 FRANCISCUS DYLAN ROSARIO
14 Plaintiff, In Pro Per
15 7624 Melody, Rohnert Park, CA 94928
16 650.488.7510
17 soltrinox@gmail.com

18 **Word count: 4,518 words**

EXHIBIT 3

Insurance Code section 790.03(h) (verbatim)

Source: Supplemental RFJN filed May 8, 2026, pp. 4-6

CGC-25-631802

May 13, 2026, 9:00 a.m., Dept. 302

practices so defined or determined.”

(Ins. Code, section 790.02.)

A.2. INSURANCE CODE SECTION 790.03(H) (UNFAIR CLAIM SETTLEMENT PRACTICES; LEAD-IN)

Verbatim lead-in:

“The following are hereby defined as unfair methods of competition and unfair and deceptive acts or practices in the business of insurance: ... (h) Knowingly committing or performing with such frequency as to indicate a general business practice any of the following unfair claims settlement practices”

(Ins. Code, section 790.03, subd. (h).)

A.3. INSURANCE CODE SECTION 790.03(H)(1) (MISREPRESENTING FACTS OR POLICY PROVISIONS)

Verbatim:

“Misrepresenting to claimants pertinent facts or insurance policy provisions relating to any coverages at issue.”

(Ins. Code, section 790.03, subd. (h)(1).)

A.4. INSURANCE CODE SECTION 790.03(H)(3) (REASONABLE STANDARDS FOR PROMPT INVESTIGATION)

Verbatim:

“Failing to adopt and implement reasonable standards for the prompt investigation and processing of claims arising under insurance policies.”

(Ins. Code, section 790.03, subd. (h)(3).)

A.5. INSURANCE CODE SECTION 790.03(H)(4) (ACKNOWLEDGE AND ACT PROMPTLY)

Verbatim:

“Failing to acknowledge and act reasonably promptly upon communications with respect to claims arising under insurance policies.”

(Ins. Code, section 790.03, subd. (h)(4).)

A.6. INSURANCE CODE SECTION 790.03(H)(5) (GOOD-FAITH SETTLEMENT)

Verbatim:

“Not attempting in good faith to effectuate prompt, fair, and equitable settlements of claims in which liability has become reasonably clear.”

1 (Ins. Code, section 790.03, subd. (h)(5).)

2 A.7. INSURANCE CODE SECTION 790.03(H)(6) (COMPELLING LITIGATION)

3 Verbatim:

4 “Compelling insureds to institute litigation to recover amounts due under an insur-
5 ance policy by offering substantially less than the amounts ultimately recovered in
6 actions brought by the insureds, when the insureds have made claims for amounts
7 reasonably similar to the amounts ultimately recovered.”

8 (Ins. Code, section 790.03, subd. (h)(6).)

9 A.8. INSURANCE CODE SECTION 790.03(H)(7) (ADVERTISING MISMATCH)

10 Verbatim:

11 “Attempting to settle a claim by an insured for less than the amount to which
12 a reasonable person would have believed that the insured was entitled by refer-
13 ence to written or printed advertising material accompanying or made part of an
14 application.”

15 (Ins. Code, section 790.03, subd. (h)(7).)

16 A.9. INSURANCE CODE SECTION 790.03(H)(11) (ARBITRATION APPEALS)

17 Verbatim:

18 “Making known to insureds or claimants a practice of the insurer of appealing
19 from arbitration awards in favor of insureds or claimants for the purpose of com-
20 pelling them to accept settlements or compromises less than the amount awarded
21 in arbitration.”

22 (Ins. Code, section 790.03, subd. (h)(11).)

23 A.10. INSURANCE CODE SECTION 790.03(H)(13) (REASONABLE EXPLANATION
24 OF DENIAL)

25 Verbatim:

26 “Failing to provide promptly a reasonable explanation of the basis relied on in the
27 insurance policy, in relation to the facts or applicable law, for the denial of a claim
28 or for the offer of a compromise settlement.”

29 (Ins. Code, section 790.03, subd. (h)(13).)

1 A.11. INSURANCE CODE SECTION 790.04 (COMMISSIONER EXAMINATION AU-
2 THORITY)

3 Paraphrased: section 790.04 authorizes the Insurance Commissioner to examine and inves-
4 tigate the affairs of every person engaged in the business of insurance in this state in order
5 to determine whether such person has been engaged in any unfair method of competition or
6 in any unfair or deceptive act or practice prohibited by section 790.03.

7 (Ins. Code, section 790.04.)

8 A.12. INSURANCE CODE SECTION 790.05 (CEASE-AND-DESIST ORDERS; MONE-
9 TARY PENALTIES)

10 Paraphrased: section 790.05 authorizes the Insurance Commissioner, after notice and hear-
11 ing, to issue cease-and-desist orders against any person engaged in the business of insurance
12 who has been or is engaged in any unfair method of competition or any unfair or deceptive act
13 or practice defined in section 790.03, and to impose monetary penalties for noncompliance.

14 (Ins. Code, section 790.05.)

15 A.13. INSURANCE CODE SECTION 791.03 (INSURANCE INFORMATION AND PRI-
16 VACY PROTECTION ACT; COLLECTION AND HANDLING)

17 Paraphrased: section 791.03 imposes notice, disclosure, and authorization requirements on
18 insurers' collection of personal information from insureds, applicants, and claimants in con-
19 nection with insurance transactions.

20 (Ins. Code, section 791.03.)

21 A.14. INSURANCE CODE SECTION 791.13 (INSURANCE INFORMATION AND PRI-
22 VACY PROTECTION ACT; DISCLOSURE LIMITATIONS)

23 Paraphrased: section 791.13 prohibits an insurance institution, agent, or insurance-support
24 organization from disclosing any personal or privileged information about an individual col-
25 lected or received in connection with an insurance transaction except as enumerated in the
26 section.

27 (Ins. Code, section 791.13.)
28

EXHIBIT 4

10 CCR sections 2695.3-2695.8 (verbatim block)

Source: Supplemental RFJN filed May 8, 2026, pp. 7-10

CGC-25-631802

May 13, 2026, 9:00 a.m., Dept. 302

1 SECTION B. FAIR CLAIMS SETTLEMENT PRACTICES REGULATIONS (10 CCR
2 SECTIONS 2695.1 TO 2695.8) (EVID. CODE SECTION 451(B), SECTION 452(B))

3 Plaintiff requests judicial notice of the text of the following provisions of title 10, California
4 Code of Regulations, sections 2695.1 to 2695.8, promulgated by the Insurance Commissioner
5 under the authority of Insurance Code section 790.10 and known as the Fair Claims Set-
6 tlement Practices Regulations. Judicial notice is mandatory under Evidence Code section
7 451(b) and authorized under section 452(b). The regulations implement Insurance Code sec-
8 tion 790.03(h) and bind every insurer doing business in California, including CSAA Insurance
9 Exchange, the named defendant in CGC-25-631802.

10 B.1. 10 CCR SECTION 2695.1(A) (PURPOSE AND APPLICABILITY)

11 Verbatim:

12 “The purpose of these regulations is to promote the good faith, prompt, efficient
13 and equitable settlement of claims and to define certain minimum standards for
14 the settlement of claims which, when violated knowingly on a single occasion or
15 performed with such frequency as to indicate a general business practice shall
16 constitute an unfair claims settlement practice within the meaning of Insurance
17 Code Section 790.03(h).”

18 (10 Cal. Code Regs., section 2695.1, subd. (a).)

19 B.2. 10 CCR SECTION 2695.1(D) (MANDATORY MINIMUM STANDARDS; VIOLA-
20 TION EQUALS UNFAIR PRACTICE)

21 Verbatim:

22 “These regulations are not meant to provide the exclusive definition of all unfair
23 claims settlement practices. ... The standards in these regulations are minimum
24 standards. ... Failure of an insurer or other licensee to comply with the require-
25 ments of these regulations may constitute a violation of the Unfair Practices Act,
26 Insurance Code Section 790.02 or 790.03.”

27 (10 Cal. Code Regs., section 2695.1, subd. (d).)

28 B.3. 10 CCR SECTION 2695.2(C) (DEFINITION OF “CLAIM”)

29 Verbatim:

30 “Claim means a request or demand on an insurer for payment of benefits according
31 to the terms of an insurance policy. Claim does not include a request for coverage.”

(10 Cal. Code Regs., section 2695.2, subd. (c).)

B.4. 10 CCR SECTION 2695.2(T) (DEFINITION OF “PROOF OF CLAIM”)

Paraphrased: proof of claim means any evidence or documentation in the possession of the insurer, whether as a result of its having been submitted by the claimant or obtained by the insurer in the course of its investigation, that provides any evidence of the claim and that reasonably supports the magnitude or the amount of the claimed loss.

(10 Cal. Code Regs., section 2695.2, subd. (t).)

B.5. 10 CCR SECTION 2695.2(Y) (DEFINITION OF “INVESTIGATION”)

Paraphrased: investigation means all activities of an insurer or its claims agent related to the determination of coverage, liabilities, or nature and extent of loss or damage for which benefits are afforded by an insurance policy, obligations or duties under a bond, and other obligations or duties arising from an insurance policy or bond.

(10 Cal. Code Regs., section 2695.2, subd. (y).)

B.6. 10 CCR SECTION 2695.3 (FILE AND RECORD DOCUMENTATION)

Paraphrased: every licensee’s claim files shall contain all documents, notes, and work papers (including copies of all correspondence) which reasonably pertain to each claim in such detail that pertinent events and the dates of the events can be reconstructed; the licensee shall maintain claim data that are accessible, legible, and retrievable for examination, and the data shall be retained as required by law.

(10 Cal. Code Regs., section 2695.3.)

B.7. 10 CCR SECTION 2695.4(A) (REPRESENTATIONS TO CLAIMANTS)

Paraphrased: every insurer shall disclose to a first-party claimant or beneficiary all benefits, coverage, time limits, or other provisions of any insurance policy issued by that insurer that may apply to the claim presented; when additional benefits might reasonably be payable under an insured’s policy upon receipt of additional proofs of claim, the insurer shall immediately communicate this to the insured.

(10 Cal. Code Regs., section 2695.4, subd. (a).)

B.8. 10 CCR SECTION 2695.5(B), (C) (ACKNOWLEDGMENT AND PENDENCY)

Paraphrased: subdivision (b) requires that, upon receiving any communication from a claimant regarding a claim that reasonably suggests a response is expected, every licensee shall immediately, but in no event more than fifteen calendar days after receipt of that com-

1 munication, furnish the claimant with a complete response based on the facts as then known
2 by the licensee. Subdivision (c) requires that every insurer, upon receiving notice of claim,
3 shall immediately, but in no event more than fifteen calendar days later, acknowledge receipt
4 of such notice to the claimant and provide claim forms and instructions.

5 (10 Cal. Code Regs., section 2695.5, subds. (b), (c).)

6 B.9. 10 CCR SECTION 2695.7(B) (FORTY-DAY DETERMINATION)

7 Verbatim:

8 “Upon receiving proof of claim, every insurer, except those subject to Insurance
9 Code Sections 10169-10169.5, shall immediately, but in no event more than forty
10 (40) calendar days later, accept or deny the claim, in whole or in part.”

11 (10 Cal. Code Regs., section 2695.7, subd. (b).)

12 B.10. 10 CCR SECTION 2695.7(B)(1) (ALL BASES FOR DENIAL; WRITTEN STATE-
13 MENT)

14 Verbatim:

15 “Where an insurer denies or rejects a first party claim, in whole or in part, it shall
16 do so in writing and shall provide to the claimant a statement listing all bases for
17 such rejection or denial and the factual and legal bases for each reason given for
18 such rejection or denial which is then within the insurer’s knowledge.”

19 (10 Cal. Code Regs., section 2695.7, subd. (b)(1).)

20 B.11. 10 CCR SECTION 2695.7(B)(3) (DEPARTMENT OF INSURANCE REVIEW NO-
21 TICE)

22 Verbatim:

23 “Written notice of denial of any claim shall include a statement that, if the claimant
24 believes the claim has been wrongfully denied or rejected, he or she may have the
25 matter reviewed by the California Department of Insurance ...”

26 (10 Cal. Code Regs., section 2695.7, subd. (b)(3).)

27 B.12. 10 CCR SECTION 2695.7(C)(1) (STATUS UPDATES WHEN MORE TIME IS
28 NEEDED)

29 Verbatim:

30 “If more than forty (40) calendar days are required to determine whether a claim
31 should be accepted and/or denied in whole or in part, every insurer shall provide

1 the claimant, within forty (40) calendar days after receipt of the proof of claim,
2 with written notice of the need for additional time Such written notice shall be
3 sent every thirty (30) days thereafter”

4 (10 Cal. Code Regs., section 2695.7, subd. (c)(1).)

5 B.13. 10 CCR SECTION 2695.7(D) (THOROUGH, FAIR, AND OBJECTIVE INVESTI-
6 GATION)

7 Verbatim:

8 “Every insurer shall conduct and diligently pursue a thorough, fair and objective
9 investigation and shall not persist in seeking information not reasonably required
10 for or material to the resolution of a claim dispute.”

11 (10 Cal. Code Regs., section 2695.7, subd. (d).)

12 B.14. 10 CCR SECTION 2695.7(G) (NO UNREASONABLY LOW SETTLEMENTS)

13 Verbatim:

14 “No insurer shall attempt to settle a claim by making a settlement offer that is
15 unreasonably low.”

16 (10 Cal. Code Regs., section 2695.7, subd. (g).)

17 B.15. 10 CCR SECTION 2695.7(H) (TIMELY TENDER)

18 Paraphrased: subdivision (h) requires that, upon acceptance of the claim in whole or in part,
19 the insurer shall tender payment within thirty calendar days, subject to limited tolling for
20 claimant compliance.

21 (10 Cal. Code Regs., section 2695.7, subd. (h).)

22 B.16. 10 CCR SECTION 2695.8 (AUTOMOBILE INSURANCE)

23 Paraphrased: section 2695.8 imposes additional auto-specific duties on insurers handling
24 automobile claims, including standards for first-party and third-party automobile total losses,
25 partial losses, salvage, and storage; the section establishes prompt-payment, documentation,
26 and disclosure obligations specific to the automobile-claim context.

27 (10 Cal. Code Regs., section 2695.8.)
28

EXHIBIT 5

911 audio / lodging notice (excerpt)

Source: Notice of Lodging item 08, pp. 1-3

CGC-25-631802

May 13, 2026, 9:00 a.m., Dept. 302

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S NOTICE OF LODGING TRIAL
REPORTER'S TRANSCRIPTS, AUDIO RECORDINGS,
AND CAD LOGS

(Cal. Rules of Court, rule 3.1306(c)(2))

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario files this Notice of Lodging under California Rules of
3 Court, rule 3.1306(c)(2), and Evidence Code sections 1280 and 1530. Plaintiff lodges the
4 trial reporter's transcripts, audio recordings, and CAD logs identified herein for the Court's
5 review in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302. Plaintiff's
6 right to lodge non-paper evidentiary materials in advance of hearing is preserved under CRC
7 3.1306(c)(2). Filed on May 8, 2026.

8 AUTHORITY

9 Pursuant to California Rules of Court, rules 3.1306(c)(2) and 3.1116, and the applicable San
10 Francisco Superior Court Local Rules governing lodging of physical and digital materials,
11 Plaintiff Franciscus Dylan Rosario hereby gives notice of the following bulky materials lodged
12 with the Court in support of Plaintiff's three Operative Oppositions (items 01, 01B, 01C),
13 the Plaintiff's Declaration in Opposition (Plaintiff Declaration (item 04, filed May 8, 2026)),
14 and the Notice and Statement re C.C.P. § 425.17 (Notice re CCP 425.17 (item 13, filed May
15 8, 2026)), all filed May 8, 2026.

16
17 MATERIALS LODGED

18 LODGING 1: TRIAL REAL-TIME TRANSCRIPT FROM UNDERLYING MATTER CGC-
19 21-594102

20 Description: Certified trial reporter's transcript from the underlying matter Rosario v.
21 Abdelhalim, Superior Court of California, County of San Francisco, case number CGC-
22 21-594102, including the trial days containing (a) the February 18, 2025 hearing at which
23 defense counsel represented that the silent witness materials were "news to me" and of "un-
24 known origin"; and (b) the trial day containing defendant Abdelhalim's authentication of
25 the 911 audio recording: "Yes. That is my voice."

26 Authority for lodging: CRC 3.1116 (transcripts used in law and motion proceedings); CRC
27 3.1306(c)(2) (lodging of bulky material that cannot conveniently be filed or attached).

28 Access: Plaintiff will provide to defense counsel and to the Court clerk written instructions
29 for accessing the digital copy of the trial transcript on request. Certified hard copy available
30 for court inspection.

1 LODGING 2: 911 AUDIO RECORDING

2 Description: The 911 audio recording of the call made by Defendant Abdelhalim in con-
3 nection with the February 4, 2021 incident (Report No. 210079556, San Francisco Police
4 Department). This recording is the recording authenticated at trial by Defendant Abdel-
5 halim and excluded before trial by Defense Motions in Limine Nos. 6 and 17.

6 Authority for lodging: CRC 3.1306(c)(2); SF Local Rule lodging provisions for audio record-
7 ings.

8 Access: Plaintiff will provide to defense counsel and to the Court clerk written instructions
9 for accessing the digital audio file on request. The recording is in standard digital audio
10 format.

11
12 LODGING 3: BODY-WORN CAMERA FOOTAGE

13 Description: Body-worn camera footage from responding San Francisco Police Department
14 officers at the scene of the February 4, 2021 incident. This footage was excluded before trial
15 by Defense Motion in Limine No. 17.

16 Authority for lodging: CRC 3.1306(c)(2); SF Local Rule lodging provisions for video record-
17 ings.

18 Access: Plaintiff will provide to defense counsel and to the Court clerk written instructions
19 for accessing the digital video file on request.

20
21 LODGING 4: COMPUTER-AIDED DISPATCH (CAD) LOGS

22 Description: Computer-aided dispatch logs from the San Francisco Police Department for
23 Report No. 210079556 and the February 4, 2021 incident.

24 Authority for lodging: CRC 3.1306(c)(2).

25 Access: Digital file; access instructions available on request.

26
27 STATEMENT OF RELEVANCE

28 The lodged materials are relevant to:

- 29 (1) Plaintiff's Operative Opposition to Anti-SLAPP (Anti-SLAPP Opposition (item 01,
30 filed May 8, 2026)): Sections IV and V (Flatley illegality; Step Two minimal merit),
31 establishing the pre-trial possession, in-trial misrepresentation, and authentication chain

EXHIBIT 6

CSAA claim file (investigation exhibit)

Source: CLERKS-TRANSCRIPTS-SOURCES/EXHIBIT.001.CSAA-INVESTIGATION.pdf

CGC-25-631802

May 13, 2026, 9:00 a.m., Dept. 302



Account No. **04767X**

CSAA-CA
Sendout 60

XM

Attention : **Tonya McConnaughay**

CSAA INSURANCE GROUP,AAA INSUR

Customer Service:

Metro Reporting Customer Support 1-800-245-6686 or help@metroreporting.com

Metropolitan Reporting Bureau
BOX 926, William Penn Annex
Philadelphia, PA 19105-0926
FAX (800) 343-9047

Type of Report: AUTO ACCIDENT

INSURED : SUBHI A ABDELHALIM
CLAIM NUMBER: 1004-09-1054
POLICY NUM. : CAAS100310857
DATE OF LOSS: 02/04/21
LOSS STREET : 5th St & Tehama St
LOSS CITY : San Francisco CA
POLICE DEPT.: NEED SIGN AUTH WITH REQ
REPORT NUM. : 210079556
INS. DRIVER : ABDELHALIM SUBHI A
OTHER DRIVER:
PCT./DIST. : SAN FRANCI
DESC.OF OTHER: v1 turning right po

THANK YOU FOR THE ORDER!

Any questions or problems please feel free to contact us.

PH. (800) 245-6686 or Help@metroreporting.com



1131096098



EXHIBIT 7

Public availability (complaint paragraphs; Gov. Code; Penal Code 832.7)

Source: Indexed Exhibits Vol. pp. 1039-1040 (operative complaint)

CGC-25-631802

May 13, 2026, 9:00 a.m., Dept. 302

1 third persons for the negligence of his agent in the transaction of the business of the agency, includ-
2 ing wrongful acts committed by such agent in and as a part of the transaction of such business, and
3 for his willful omission to fulfill the obligations of the principal.” Under § 2338, CSAA Insurance
4 Exchange is directly liable for the wrongful acts and omissions of Sarah Rash, the claims depart-
5 ment personnel who reviewed and approved the February 25, 2021 denial, and any retained claims
6 professionals or counsel acting within the scope of the claims-handling agency. Plaintiff further
7 alleges that CSAA ratified the February 25, 2021 denial and its underlying non-investigation by
8 (a) failing to correct the denial after the Title 10 CCR §§ 2695.4 and 2695.7 violations became
9 apparent; (b) maintaining the denial position through successive insurance-coverage communica-
10 tions and, later, through litigation defense of its insured; and (c) failing to repudiate the “concluded
11 investigation” representation after the January 17, 2025 / February 18, 2025 / April 16, 2025 record
12 events described in Section VIII. Under *Doctors’ Company v. Superior Court* (1989) 49 Cal.3d 39,
13 an insurer that acts outside the ordinary insurer role by directing, approving, or ratifying wrongful
14 claims-handling conduct may be held directly liable for that conduct. CSAA’s continuing fail-
15 ure to repudiate the “concluded investigation” representation, after each subsequent record event
16 placed the carrier and its panel counsel on notice of the falsity, is itself reckless disregard within
17 the meaning of Section 0 above.

18 **§I.6, GRAVAMEN DISCLAIMER (NON-COMMUNICATIVE INSTITU-** 19 **TIONAL FAILURE)**

- 20 7. The gravamen of this action is CSAA’s institutional “deny-delay-defend” failure to investi-
21 gate, not the act of writing a denial letter. The February 25, 2021 denial letter is pleaded as
22 **evidence** of the underlying non-communicative failure, not as the sole injury-producing act.
- 23 8. Among the foundational incident materials CSAA failed to obtain, review, or truthfully ac-
24 count for before the February 25, 2021 denial were the following contemporaneous San
25 Francisco first-responder records (collectively, the “**Silent Witnesses**”), each of which was
26 available from the San Francisco Police Department and/or the San Francisco Department of
27 Emergency Management within days of the February 4, 2021 collision and was obtainable by
28 routine written request under Gov. Code § 6250 et seq. (now Gov. Code §§ 7920.000 et seq.)

and Penal Code § 832.7(b):

- (a) The **911 audio recording** and associated **Computer-Aided Dispatch (CAD) event record** generated on February 4, 2021 in connection with **SFPD Incident Report No. 210083458** (on information and belief; exact SFPD incident and 911-CAD event numbers to be conformed to proof), in which CSAA's insured made statements acknowledging that he struck Plaintiff with his vehicle;
- (b) **Plaintiff's contemporaneous report to 911** emergency services, made on February 4, 2021 from the collision scene, that the driver had struck him; and
- (c) **Body-worn camera (BWC) footage** from the San Francisco Police Department officers who responded to the February 4, 2021 collision scene (responding officers' names and star numbers in the possession of SFPD and available through a routine Penal Code § 832.7(b) / Pitchess-adjacent public-records request), in which a third-party eyewitness (**Justin Rosemond**) independently corroborated that the driver struck Plaintiff.

9. Taken together, these three sources constituted virtually uncontested evidence of liability, confession, victim report, and eyewitness corroboration. CSAA denied a claim supported by all three. Under § 0.2(d) above, the closing-the-file conduct in the face of these reasonably-available, identifiable-on-the-face-of-the-police-report materials is reckless disregard for the truth as a matter of law.

UCL STANDING UNDER BUSINESS AND PROFESSIONS CODE § 17200

10. Plaintiff has standing to bring a claim under Business and Professions Code § 17200 et seq. (the Unfair Competition Law) because Plaintiff has suffered injury in fact and has lost money or property as a result of Defendant's unfair, fraudulent, and unlawful business practices.

EXPRESS MORADI-SHALAL CARVE-OUT

11. This action does not assert a private cause of action under Insurance Code § 790.03, which is precluded by *Moradi-Shalal v. Fireman's Fund Insurance Companies* (1988) 46 Cal.3d 287.

12. Instead, Plaintiff asserts:

- (a) **Common-law fraud and deceit** under Civil Code §§ 1709, 1710(1), 1710(3) (intentional and reckless-disregard tiers);

EXHIBIT 8

Defense Anti-SLAPP MPA (excerpt; no section 425.17 engagement)

Source: Clerk seq. 017, pp. 1-10

CGC-25-631802

May 13, 2026, 9:00 a.m., Dept. 302

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

2180 Harvard Street, Suite 500

Sacramento, California 95815

TEL: 916.929.1481

FAX: 916.927.3706

Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

04/09/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

vs.

CSAA INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF SPECIAL
MOTION TO STRIKE PLAINTIFF'S FIRST
AMENDED COMPLAINT PURSUANT TO
C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

(CODE CIV. PROC. § 425.16)

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

TABLE OF CONTENTS

PAGE(S)

I.	INTRODUCTION	1
II.	SUMMARY OF ARGUMENT.....	2
III.	STATEMENT OF THE FACTS.....	3
A.	THE PARTIES.....	3
B.	FACTUAL AND PROCEDURAL BACKGROUND.....	3
C.	PLAINTIFF’S ORIGINAL SUIT ARISES OUT OF ALLEGATIONS THAT THE INSURED HIT PLAINTIFF WITH HIS CAR, A CLAIM THAT WAS ULTIMATELY REJECTED AT TRIAL DESPITE THE JURY’S CONSIDERATION OF THE “OBJECTIVE LIABILITY EVIDENCE” IN QUESTION.....	4
D.	DEFENDANT CSAA INITIALLY DENIED PLAINTIFF’S CLAIM AND SUBSEQUENTLY HAD NO ROLE IN LITIGATION, ASIDE FROM RETAINING INSURANCE DEFENSE COUNSELS AND FUNDING THE DEFENSE.....	5
IV.	LEGAL STANDARD UNDER CODE CIV. PROC. § 425.16.....	6
A.	STEP ONE IS MET: PLAINTIFF’S FACTUAL ALLEGATIONS AGAINST DEFENDANT ENTIRELY ARISE FROM PROTECTED ACTIVITY UNDER CODE CIV. PROC. § 425.16 AND CIVIL CODE § 47(B).....	7
1.	CSAA’s “Liability-Claim Denial Letter” is Protected Conduct – (FAC ¶ 1).....	8
2.	The FAC’s Claim that CSAA’s Denial Letter “Was Materially False” Because CSAA “had not Obtained or Reviewed ... Objective Liability Evidence for the Incident” Again Targets Protected Conduct (FAC ¶ 4).....	9
3.	Plaintiff’s Claim that “CSAA Funded and Directed the Defense” and Made “False and Misleading Representations” to the Court While Maintaining its “Litigation-Stage Denial Posture” Targets Protected Conduct (FAC ¶ 22F).....	10
B.	STEP TWO IS MET: PLAINTIFF CANNOT PROVE A PROBABILITY OF SUCCESS ON HIS CLAIMS.....	11
1.	Plaintiff’s Claims are Barred by the Litigation Privilege in Civil Code § 47(b)....	11
2.	Plaintiff’s FAC is an Unsupportable “Collateral Attack” on this Court’s Valid Judgment.....	12
3.	Plaintiff’s Substantive Claims for Fraud and UCL Violations Cannot Survive for the Same Fundamental Reasons.....	13
i.	Plaintiff Cannot Prevail on His Cause of Action for Fraud.....	13
ii.	Plaintiff Cannot Prevail on His Cause of Action for Violation of the UCL.....	14
V.	CONCLUSION.....	16

TABLE OF AUTHORITIES

CASES

PAGE(S)

<i>A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc.</i>	8
(2006) 137 Cal.App.4th 1118, 1128	
<i>Adams v. Superior Court</i>	9
(1992) 2 Cal.App.4th 521, 529	
<i>Aronson v. Kinsella</i>	9
(1997) 58 Cal.App.4th 254, 271	
<i>Bergstein v. Stroock & Stroock & Lavan LLP</i>	7
(2015) 236 Cal. App. 4th 793, 803	
<i>Briggs v. Eden Council for Hope & Opportunity</i>	11
(1999) 19 Cal.4th 1106, 1115	
<i>Cabral v. Martins</i>	9
(1999) 177 Cal.App.4th 471, 482	
<i>Church of Scientology v. Wollersheim</i>	7
(1996) 42 Cal.App.4th 628, 648	
<i>City of Cotati v. Cashman</i>	6
(2002) 29 Cal.4th 69, 76	
<i>City of Colton v. Singletary</i>	10
(2012) 206 Cal.App.4th 751, 767	
<i>Club Members v. Sierra Club</i>	6
(2008) 45 Cal.4th 309, 312	
<i>Digerati Holdings, LLC v. Young Money Entertainment, LLC</i>	7, 12
(2011) 194 Cal.App.4th 873, 889	
<i>Dove Audio, Inc. v. Rosenfeld, Meyer & Susman</i>	10, 11
(1996) 47 Cal.App.4th 777	
<i>F.E.V. v. City of Anaheim</i>	12
(2017) 15 Cal.App.5th 462	
<i>Flatley v. Mauro</i>	9
(2006) 39 Cal.4th 299, 322	
<i>Fremont Reorganizing Corp. v. Faigin</i>	6
(2011) 198 Cal.App.4th 1153, 1165	
<i>Gilbert v. Sykes</i>	7
(2007) 147 Cal.App.4th 13, 23	
<i>Graham-Sult v. Clainos</i>	10
(9th Cir. 2014) 756 F3d 724, 736	
<i>Hagberg v. California Federal Bank</i>	8, 12
(2004) 32 Cal.4th 350, 361	
<i>Home Ins. Co. v. Zurich Ins. Co.</i>	8
(2002) 96 Cal.App.4th 17, 20, 22-26	
<i>Hunter v. CBS Broadcasting, Inc.</i>	7
(2013) 221 Cal.App.4th 1510, 1520	
<i>Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.</i>	11
(2005) 129 Cal.App.4th 1228, 1244-45	

1	<i>Kashian v. Harriman</i>	8
2	(2002) 98 Cal.App.4th 892, 908	
3	<i>L.G. v. M.B.</i>	7
4	(2018) 25 Cal.App.5th 211, 219	
5	<i>Laffer v. Levinson, Miller, Jacobs & Phillips</i>	12
6	(1995) 34 Cal.App.4th 117, 122	
7	<i>Laker v. Bd. Of Trustees of California State Univ.</i>	8, 11, 12
8	(2019) 32 Cal.App.5th 745, 753, 760, 769	
9	<i>Martinez v. Metabolife Inter't</i>	7
10	(2003) 113 Cal.App.4th 181, 188	
11	<i>Moradi-Shalal v. Fireman's Fund Ins. Companies</i>	15
12	(1988) 46 Cal.3d 287, 306	
13	<i>Orcilla v. Big Sur, Inc.</i>	14
14	(2016) 244 Cal.App.4th 982, 1008	
15	<i>People ex rel. Fire Ins. Exchange v. Anapol</i>	8
16	(2012) 211 Cal.App.4th 809, 824	
17	<i>Pollock v. University of Southern California</i>	12
18	(2003) 112 Cal.App.4th 1416, 1430	
19	<i>Rico v. Nasser Bros. Realty Co.</i>	12
20	(1943) 58 Cal.App.2d 878, 882	
21	<i>Service by Medallion, Inc. v. Clorox Co.</i>	14
22	(1996) 44 Cal.App.4th 1807, 1816	
23	<i>Shaolian v. Safeco Ins. Co.</i>	14
24	(1999) 71 Cal.App.4th 268	
25	<i>Singh v. Lipworth</i>	13
26	(2014) 227 Cal.App.4th 813, 826	
27	<i>Trinity Risk Mgmt., LLC v. Simplified Lab. Staffing Sols., Inc.</i>	7
28	(2021) 59 Cal.App.5th 995, 1004	
	<i>U.S. v. Throckmorton</i>	13
	(1878) 98 U.S. 61, 68	
	<i>Wouldridge v. Burns</i>	13
	(1968) 265 Cal.App.2d 82, 84	
	<i>Zhang v. Superior Court</i>	15
	(2013) 57 Cal.4th 364, 369	

STATUTES

Business & Professions Code § 17200	2, 15
California Civil Code § 47(b)	2, 6, 10, 11, 12, 13
California Code of Civil Procedure § 425.16	1, 2, 6, 7, 8, 10, 11, 12, 16
Insurance Code § 790.03	9, 15

REGULATIONS

10 Cal. Code Regs. § 2695.7	9
-----------------------------------	---

I. INTRODUCTION

Plaintiff's Amended Complaint ("FAC") constitutes an impermissible collateral attack on a final judgment entered after a full jury trial and extensive pre- and post-trial proceedings. In the underlying action, a jury returned a defense verdict on liability following the presentation of all evidence Plaintiff claims was "wrongfully obstructed." The Court thereafter denied Plaintiff's multiple post-trial motions challenging the verdict and judgment. Plaintiff has since filed a notice of appeal, which remains pending.¹

Rather than awaiting appellate review, Plaintiff now advances mere variations of all the same baseless arguments he litigated at trial. The only difference from the original trial is slight: Plaintiff now targets the original defendant's *insurance carrier*, CSAA, for CSAA's alleged litigation conduct, including: investigating Plaintiff's claim, "fund[ing] and direct[ing] the defense" at trial, "making false and misleading representations" to the Court regarding discovery disputes, and ultimately defeating Plaintiff's original action. (FAC ¶ 22F). Indeed, **the FAC seeks to impose liability based entirely on Defendants' litigation conduct in defending the underlying case—including discovery practices, motions in limine, and representations to the Court.** These allegations do not state a cognizable claim as a matter of law and instead fall squarely within the scope of conduct protected by California's Anti-SLAPP statute and the absolute litigation privilege.

Conduct which takes place in the course of litigation is protected from civil suit. Engaging in insurance claims evaluation, issuing pre-litigation denial letters, arguing in Court, and funding the defense of an insured are all protected activities, and California courts have long held that **lawsuits premised on such conduct are barred as a matter of law.** Plaintiff's current allegations are simply a misguided effort to undo his loss at trial and punish the original defendant's insurance carrier (CSAA) for funding a successful defense. Accordingly, the FAC is subject to a special motion to strike under Code of Civil Procedure section 425.16 because (1) each allegation targets protected litigation conduct, and (2) Plaintiff cannot establish a probability of prevailing on the merits of either of his causes of action. **The absolute litigation privilege independently bars Plaintiff's claims, and his claims fail for several reasons.** For these reasons, the Court should strike the FAC in its entirety without leave to amend and award Defendants their mandatory attorneys' fees and costs incurred in bringing this Special Motion to Strike.

¹ See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**; (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal.

II. SUMMARY OF ARGUMENT

Plaintiff seeks to make an improper collateral attack on a properly rendered jury verdict and this Court's valid judgment. The FAC focuses on all Defendant's litigation activity—in its own capacity, and by and through its counsels—resulting in a defense verdict. All the alleged conduct is protected under Civil Code § 47(b) and Code Civ. Proc. § 425.16(e) as part of Defendants' pre-trial investigation and litigation conduct.

Plaintiff's FAC must be stricken, in its entirety as both prongs of the Anti-SLAPP analysis are satisfied. First, under prong one: The FAC's factual allegations arise entirely from Defendant's protected litigation conduct: pre-trial investigation and communications with the Court (by and through counsel).

Second, under prong two: Plaintiff cannot possibly meet his burden of offering admissible evidence establishing he has a probability of success on his causes of action. Neither Plaintiff's *First Cause of Action for Fraud and Deceit*, nor his *Second Cause of Action for Violation of Business and Professions Code § 17200 (UCL)* can survive. This is the case for several reasons including: i) all alleged activity is protected conduct under Civil Code § 47(b); ii) Plaintiff's entire theory is, in reality, a improper collateral attack on a prior valid judgment;² and iii) Plaintiff cannot establish his claims against a *third party's* insurance carrier.

Moreover, crucially Plaintiff's true remedy for allegations in the FAC is decidedly pursuing an appeal. And, indeed, Plaintiff has filed an Appeal, which remains pending.³ However, Plaintiff has still filed this action, with no legal authority to support it, especially in light of his pending appeal. The FAC has further substantive and procedural defects, including: i) Plaintiff does not have standing to bring these claims against a third-party tortfeasor's insurance carrier; ii) Plaintiff's statute of limitations has already run for both claims, at least as pertains to the Feb. 2021 denial letter; iii) the FAC's collateral attack on the prior judgment is legally unsupportable; and iv) Plaintiff cannot state a cause of action based on Defendant denying an insurance claim, pre-trial; and retaining attorneys who maintained that denial posture at trial and prevailed before the jury.

Therefore, the action should be dismissed.

² Plaintiff's original Complaint in this action explicitly represented to the Court that "*Plaintiff does not seek reversal or modification of any judgment in the Underlying Action.*" (See RFJN **Ex. T**, Plaintiff's Original Complaint in the instant action, ¶ 31); (but see RFJN **Ex. B**, Plaintiff's FAC in Related Case) (seeking to "set aside judgment").

³ (See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**); (see also RFJN **Ex. Q**, Plf's Notice of Appeal; RFJN **Ex. R**, Plf's Notice of Designating Record on Appeal).

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 0
- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 0
- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8

Plaintiff is FRANCISCUS DYLAN ROSARIO (“Plaintiff”).

Defendant CSAA INSURANCE EXCHANGE (“CSAA”) was the insurance carrier for SUBHI ABDELHALIM (“Insured”) during the underlying trial.

Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance carrier: CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of ABDELHALIM's policy of insurance. This special motion to strike is filed on behalf of CSAA. (*See* RFJN **Ex. C**, *Register of Actions, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Phillips, Spallas, and Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as "PSA") were CSAA's retained insurance defense counsels who obtained a defense verdict at Plaintiff's underlying trial.

Plaintiff’s allegations against CSAA relate to Plaintiff’s belief that i) CSAA should not have denied his claim back in February 2021; and ii) that CSAA, by and through its retained defense counsels, made “false and misleading representations” (*FAC* ¶ 22F) to this Court (based on CSAA’s earlier claim denial) which resulted in Plaintiff being forced to litigate his underlying jury trial—which Plaintiff lost by defense verdict. (*See* RFJN **Ex. S**, *Defendant’s Notice of Entry of Judgment, Rosario v. Abdelhalim, Case No. CGC-21-594102*). Now, Plaintiff seeks to recast his prior litigation as a claim against the original defendant’s insurer: CSAA. The gravamen of Plaintiff’s current allegations swirl around all the same issues in the underlying case—differences of opinion on the weight of certain trial evidence (911 calls, bodycam footage, and CAD logs).

It is true that CSAA's retained defense counsels *did* attempt to exclude the “objective liability evidence” (*See FAC* ¶ 4); however, the Court denied Defendant's motions in limine targeting this evidence. (*See* RFJN **Ex. E**, *Def's MIL* # 6; RFJN **Ex. F**, *Def's MIL* # 8; RFJN **Ex. G**, *Def's MIL* # 17; and RFJN **Ex. H**, *Order re Trial Scheduling and MILs*). Hence, Plaintiff was free to present to the jury, the complained-of “objective liability evidence.” (*See FAC* ¶ 4). And he did just that at trial.

///

1 C. PLAINTIFF’S ORIGINAL SUIT ARISES OUT OF ALLEGATIONS THAT THE
2 INSURED HIT PLAINTIFF WITH HIS CAR, A CLAIM THAT WAS ULTIMATELY
3 REJECTED AT TRIAL DESPITE THE JURY’S CONSIDERATION OF THE
4 “OBJECTIVE LIABILITY EVIDENCE” IN QUESTION

5 Plaintiff’s underlying personal injury lawsuit arose from an alleged motor-vehicle-on-scooter
6 incident that occurred on February 4, 2021. Plaintiff alleged that he was struck by Insured’s vehicle while
7 Plaintiff was walking (or riding, it is unclear) a scooter through an intersection. Plaintiff filed suit against
8 Insured, alleging personal injuries, and the matter proceeded to trial. All the “foundational objective
9 liability evidence” (*See FAC* ¶ 4) (discussing 911 calls, bodycam footage, and CAD logs) referenced in
10 Plaintiff’s FAC was submitted to the jury and testimony was offered by both sides on the relevance (or
11 irrelevance) of that evidence. Ultimately, a defense verdict was returned in favor of the Insured. The jury
12 found that the Insured—Subhi Abdelhalim—was simply not negligent in causing the incident.

13 Even before trial, Plaintiff filed a series of motions seeking to disqualify the assigned trial judge:
14 the Honorable Garrett L. Wong. In his “Prayer to Judge Hon. Rochelle East” [sic], accompanying his
15 motions, Plaintiff drew specific attention to all the same factual complaints he makes in this current FAC,
16 which impute the acts of PSA as to Defendant (CSAA):

- 17 1) “[t]he defense has actively attempted to suppress not only the 911 records but also the official
18 police records”; (*See RFJN Ex. O*, p. 5:7-8, *Plf’s Prayer to Judge East*)
- 19 2) “With the financial backing of AAA (CSAA Insurance), the defendant has secured premier
20 legal representation, effectively impeding the course of justice. (*Id.* at 7:28-8:2)
- 21 3) Official 911 emergency records contain multiple admissions by the defendant, and eyewitness
22 testimony confirms that he forcefully ran me over”; (*Id.* at 8:2-3)
- 23 4) “[t]he defense clearly aims to keep everything out of the jury’s view, as denial is a core part of
24 [CSAA]’s modus operandi.” (*Id.* at 46:19-20)

25 This very Court issued a lengthy and abundantly clear Order denying Plaintiff’s motions seeking
26 to disqualify the trial judge. That order rejects Plaintiff’s evidentiary arguments, the same evidentiary
27 arguments presented here, in his FAC. (*See RFJN Ex. P*, *Order Denying Plf’s “Prayer” and 170.6*).
28 Plaintiff is re-raising all the same issues already; but now, he asserts a bevy of factual allegations against
CSAA for its counsels’ litigation activity. This is legally untenable under the Anti-SLAPP statute.

After trial, Plaintiff filed a flurry of motions to set aside the jury’s defense verdict and this Court’s
judgment, including: i) a Motion for Judgment Notwithstanding the Verdict (*See RFJN Ex. I*, *Plf’s JNOV*;
see RFJN Ex. J, *Plf’s Decl. ISO JNOV*; *see RFJN Ex. K*, *Def’s Opp. to Plf’s JNOV*); ii) Motion to Vacate;
iii) A Second Motion to Vacate for Fraud on the Court; iv) Motion for New Trial (*See RFJN Ex. L*, *Plf’s*

1 *Mtn for New Trial*; RFJN **Ex. M**, *Def's Opp. to Plf's Mtn for New Trial and Mistrial*); v) Motion for
2 Mistrial; vi) A Second Motion for Mistrial; vii) an Ex Parte Request for Stay; and viii) a Request for
3 statement of Decision. All Plaintiff's post-trial motions were denied. (See RFJN **Ex. N**, *Order on Plf's*
4 *Post-Trial Mtns*). Crucially, in those post-trial motions, Plaintiff essentially all the same meritless
5 arguments, and others, surrounding Defendant's alleged "mishandling" of the "objective liability
6 evidence" and alleged "fraud on the Court." (See *FAC* ¶ 1-4; 22; 25) Now, Plaintiff seeks to repackage all
7 those same arguments in this FAC against the trial victor's insurance carrier. This is legally untenable.

8 **D. DEFENDANT CSAA INITIALLY DENIED PLAINTIFF'S CLAIM AND**
9 **SUBSEQUENTLY HAD NO ROLE IN LITIGATION, ASIDE FROM RETAINING**
10 **INSURANCE DEFENSE COUNSELS AND FUNDING THE DEFENSE**

11 Plaintiff alleges in his related case that everyone involved on the defense team (including the
12 original party defendant) committed "fraud on the Court." (See RFJN **Ex. B**, *Plaintiff's FAC in Related*
13 *Case*). However, in this case, Plaintiff takes aim squarely at CSAA for its litigation conduct, in several
14 legally unsupportable ways. Ultimately, Plaintiff takes issue with a series of acts undertaken by CSAA
15 commencing with its initial claim denial—from February 2021—and culminating in CSAA "fund[ing]
16 and direct[ing] the defense in the underlying action." (*FAC* ¶ 22F). The FAC alleges a series of factual
allegations against CSAA, which are all subject to the litigation privilege:

- 17 1) CSAA issued "a pre-litigation ... liability-claim denial letter made knowingly or recklessly and
18 used as institutional leverage to discourage or curtail an injured claimant's pursuit of a valid claim
(a deny-delay-defend claim-suppression tactic). (*FAC* ¶ 1)
- 19 2) The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated,
20 in substance, that it had "concluded" its investigation and "concluded" its insured was not liable.
(*FAC* ¶ 2)
- 21 3) the Denial Letter representation of a "concluded" investigation was materially false when made
22 because, at that time, CSAA had not obtained or reviewed basic, readily obtainable, and
23 foundational objective liability evidence for the incident, including:
 - 24 a. 911 audio;
 - 25 b. body-worn camera footage; and
 - 26 c. computer aided dispatch records. (*FAC* ¶ 4)
- 27 4) "Plaintiff alleges that CSAA's later claim activity corroborates the falsity" of the initial denial
28 letter. (*FAC* ¶ 22D)
- 5) "Plaintiff further alleges that CSAA funded and directed the defense of the Underlying Action,
Case No. CGC-21-594102, through retained defense counsel, and that CSAA-funded counsel
subsequently repeated and perpetuated the denial pattern in court by making false and misleading
representations regarding receipt, possession, and prior production of the same foundational
objective evidence CSAA had failed to obtain before issuing the Denial Letter. Plaintiff alleges this
continuity between CSAA's pre-litigation misrepresentation and its litigation-stage denial posture

1 further corroborates the institutional deny-delay-defend purpose and scienter alleged herein.”
2 (FAC ¶ 22F)

- 3 6) “Plaintiff further alleges that the third-party litigation forced by CSAA’s Denial Letter
4 misrepresentation culminated in a 9-3 defense verdict in the Underlying Action, in which the jury
5 was deprived of the governing legal standard and foundational evidence” resulting in “a trial that
6 was corrupted by the ongoing consequences of CSAA’s initial misrepresentation.” (FAC ¶ 25A)

7 All acts alleged in the FAC target CSAA’s protected litigation conduct both in its own capacity
8 (pre-litigation investigation) and for conduct undertaken by CSAA’s retained insurance defense counsel:
9 PSA. (engaging in civil discovery and arguing motions in limine). Hence, the Anti-SLAPP statute applies.

10 IV. LEGAL STANDARD UNDER CODE CIV. PROC. § 425.16

11 The Legislature passed Code of Civil Procedure (“Code Civ. Proc.”) § 425.16 to protect against
12 strategic lawsuits used to attack individuals who exercise their rights under the First Amendment—
13 including affording protection for litigation activity. The Legislature adopted Code Civ. Proc. § 425.16 in
14 response to the disturbing increase in litigation “brought primarily to chill the valid exercise of the
15 constitutional rights of freedom of speech and petition.” Commonly referred to as the Anti-SLAPP Statute,
16 it “provides for the early dismissal of unmeritorious claims filed to interfere with the valid exercise of the
17 constitutional rights of freedom of speech and petition for the redress of grievances.” (*Club Members v.*
18 *Sierra Club* (2008) 45 Cal.4th 309, 312.) The Legislature has declared that the statute must be “construed
19 broadly” to that end. (*Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1165.)

20 In application, the Motion involves a two-step process. Defendant must first make a prima facie
21 showing that the plaintiff’s claim arises from protected activity. (*City of Cotati v. Cashman* (2002) 29
22 Cal.4th 69, 76.) The burden then shifts to plaintiff to prove a probability of prevailing on the merits of the
23 claim. If plaintiff cannot meet that burden, the claim must be dismissed. (*Ibid.*)

24 A. **STEP ONE IS MET: PLAINTIFF’S FACTUAL ALLEGATIONS AGAINST 25 DEFENDANT ENTIRELY ARISE FROM PROTECTED ACTIVITY UNDER CODE 26 CIV. PROC. § 425.16 AND CIVIL CODE § 47(B)**

27 Each of the causes of action Plaintiff asserts against Defendant arise from protected activity under
28 the litigation privilege set forth in Civil Code § 47(b), which provides in relevant part:

A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2...

“The litigation privilege . . . applies to any communication (1) made in judicial proceedings; (2)

EXHIBIT 9

O'Connell reply declaration and fee prayer (companion 801 reply)

631801 Reply Decl. pp. 1-3; Reply MPA p. 6 (\$ prayer)

CGC-25-631802

May 13, 2026, 9:00 a.m., Dept. 302

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION
Chad S. Tapp, SBN 214898
ctapp@porterscott.com
Tyler J. O'Connell, SBN 346673
toconnell@porterscott.com
2180 Harvard Street, Suite 500
Sacramento, California 95815
TEL: 916.929.1481
FAX: 916.927.3706

Attorneys for Defendants,
CSAA INSURANCE EXCHANGE;
CARBONE, SMITH & KOYAMA; and
MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

vs.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**DECLARATION OF TYLER J.
O'CONNELL IN SUPPORT OF
DEFENDANTS' REPLY TO PLAINTIFF'S
OPPOSITION TO DEFENDANTS' SPECIAL
MOTION TO STRIKE PLAINTIFF'S FIRST
AMENDED COMPLAINT PURSUANT TO
C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

[CODE CIV. PROC. § 425.16]

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

05/05/2026

Clerk of the Court

BY: SANDRA SCHIRO

Deputy Clerk

1 I, Tyler J. O'Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California and I
3 am an associate at the law firm of Porter Scott, counsel of record for *Defendants CSAA INSURANCE*
4 *EXCHANGE, CARBONE, SMITH & KOYAMA, and MICHAEL R. CHAMBERS* (collectively
5 "Defendants"). This declaration is submitted in support of Defendants' Opposition to Plaintiff's Motion
6 to Deem Admitted, Compel, and for Sanctions. The following facts are within my personal knowledge
7 and, if called as a witness herein, I can and will competently testify thereto.

8 2. On April 9, 2026, I caused to be filed with the Court and served on Plaintiff by Certified
9 Mail and courtesy copy via email a copy of Defendants' Special Motion to Strike per Code Civ. Proc.
10 § 425.16 ("Anti-SLAPP motion").

11 3. Defendants' Anti-SLAPP motion is based on the nature of Plaintiff's allegations as
12 contained in the original Complaint and in the First Amended Complaint ("FAC"). Plaintiff's allegations
13 squarely target Defendants' litigation conduct all from Plaintiff's underlying personal injury jury trial—
14 which Plaintiff lost by defense verdict in April 2025.

15 4. Prior to filing the Anti-SLAPP motion, I informed Plaintiff in writing, and on a phone call,
16 of my intention of filing an Anti-SLAPP motion should he not withdraw the FAC, in its entirety—as the
17 entirety of the purported legal theories in Plaintiff's FAC focus inextricably on Defendants' protected
18 litigation conduct.

19 5. Plaintiff refused to withdraw his FAC, in writing and on two meet and confer phone calls.
20 And Defendants' Anti-SLAPP motion was properly filed on April 9, 2026.

21 6. My attorney's fees in this action are invoiced at a billable rate of \$210 per hour and I spent
22 81.7 hours in preparing Defendants' Anti-SLAPP motion, supporting Declarations, review and analysis
23 of this motion, correspondences with clients and Plaintiff, gathering and marking exhibits, and preparing
24 for the hearing on this motion. I anticipate spending another 2 hours attending the hearing for this motion.
25 Hence, in total my attorney's fees expended in preparing this Anti-SLAPP motion are: **\$16,519.50**.
26 (Attached hereto as **Exhibit A** is a true and correct copy of my office's invoicing for attorneys' fees
27 incurred in preparing this matter for the instant Anti-SLAPP motion—redacted to preserve privilege, but
28 listing all pertinent information, hours, and fees incurred).

1 I declare under the penalty of perjury under the laws of the State of California that the foregoing
2 is true and correct, and that this declaration was executed on May 5, 2026, at Sacramento, California.

3
4 *Tyler J. O'Connell*

5 Tyler J. O'Connell
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

proceeding, or investigation, except where the statement or conduct was made by a telephone corporation in the course of a proceeding before the California Public Utilities Commission and is the subject of a lawsuit brought by a competitor, notwithstanding that the conduct or statement concerns an important public issue.

This Code section, limiting Anti-SLAPP protection is completely irrelevant here, where Plaintiff was a third party and CSAA is alleged to have been actively involved in a pending litigation, in its “funding and directing of the defense” of that litigation. Section 425.17 is simply irrelevant to this case.

VII. CONCLUSION

Plaintiff’s Opposition confirms that the claims arise from protected litigation activity and lack minimal merit. Defendants respectfully request that this Court grant the special motion to strike in its entirety and award attorneys’ fees in the amount of \$16,519.50.00 pursuant to Code of Civil Procedure section 425.16, subd. (c).

Dated: May 5, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O’Connell

By _____
Chad S. Tapp
Tyler J. O’Connell
Attorneys for Defendants
CSAA INSURANCE EXCHANGE;
CARBONE, SMITH & KOYAMA; and
MICHAEL R. CHAMBERS